CROSS-BORDER ASSET PURCHASE & M&A AGREEMENT

Cerberus Quantum Technologies AG & Vanguard Dynamics Global Corp | $185,000,000 USD

RECITALS AND TRANSACTION STRUCTURE

This ASSET PURCHASE AGREEMENT (this 'Agreement'), dated as of October 15, 2026, is entered into by and between Cerberus Quantum Technologies AG, a Swiss corporation organized under the laws of the Canton of Zurich ('Seller'), and Vanguard Dynamics Global Corp., a Delaware corporation ('Buyer'). WHEREAS, Seller owns proprietary quantum algorithmic models, high-performance neural acceleration patents, and specialized quantum assembly assets (the 'Business'); and WHEREAS, Buyer desires to purchase from Seller, and Seller desires to sell to Buyer, substantially all the assets, properties, and rights of Seller utilized in the Business, for a total aggregate enterprise valuation of ONE HUNDRED EIGHTY-FIVE MILLION DOLLARS ($185,000,000 USD), subject to the strict terms, covenants, representations, warranties, and escrow holdbacks set forth herein.

SECTION 1. PURCHASE AND SALE OF ACQUIRED ASSETS

1.1 Acquired Assets. Upon the terms and subject to the conditions of this Agreement, at the Closing, Seller shall sell, assign, transfer, convey, and deliver to Buyer, and Buyer shall purchase from Seller, all right, title, and interest in and to all of the following assets of Seller: (a) all registered patents, patent applications, trade secrets, proprietary source code repositories, training datasets, and model weight checkpoints set forth on Exhibit A; (b) all transferable customer contracts, enterprise statements of work, and government research grants; and (c) all physical server nodes, cryogenic cooling units, and high-frequency interconnect hardware located at Seller's Zurich facility.

1.2 Excluded Liabilities. Buyer shall not assume, nor shall Buyer be deemed to have assumed, any liabilities, debts, or obligations of Seller of any nature whatsoever, whether known or unknown, accrued, absolute, contingent, or otherwise, including without limitation: (i) any employee severance or pension obligations governed by Swiss employment law; (ii) any pre-closing tax liabilities under Swiss, EU, or US jurisdictions; and (iii) any pending or threatened litigation claims set forth on Exhibit B.

SECTION 2. PURCHASE PRICE, ESCROW HOLDBACK AND EARN-OUT MILESTONES

2.1 Consideration. The aggregate purchase price for the Acquired Assets shall be $185,000,000 USD, payable as follows: (a) $150,000,000 USD in immediately available cash wired to Seller at Closing; (b) $15,000,000 USD (the 'Indemnity Escrow Amount') deposited at Closing with J.P. Morgan Chase Bank, N.A. (the 'Escrow Agent') to secure Seller's indemnification obligations under Section 5 for a period of twenty-four (24) months post-Closing; and (c) up to $20,000,000 USD in earn-out milestone payments (the 'Earn-Out Consideration').

2.2 Earn-Out Covenants. The Earn-Out Consideration shall be paid in two equal tranches of $10,000,000 USD each, contingent upon the Acquired Business achieving: (i) Trailing Twelve Month ('TTM') recognized Annual Recurring Revenue ('ARR') of not less than $75,000,000 USD within eighteen (18) months post-Closing; and (ii) an adjusted EBITDA margin of at least thirty-five percent (35%). In the event Buyer modifies the algorithmic core architecture, reallocates engineering resources, or consolidates the sales pipeline into Buyer's broader corporate entity, Seller shall have no right to object, and no deemed attainment of Earn-Out targets shall occur. Buyer shall maintain sole, unfettered operational discretion over the Business post-Closing.

SECTION 3. WORKING CAPITAL ADJUSTMENT AND POST-CLOSING TRUE-UP

3.1 Post-Closing Working Capital Statement. Within ninety (90) calendar days following the Closing Date, Buyer shall prepare and deliver to Seller a statement setting forth Buyer's calculation of the Closing Working Capital.

3.2 Dispute Mechanism. Seller shall have thirty (30) calendar days from receipt of the Closing Statement to deliver written notice of disagreement. If Seller fails to deliver

an objection notice within said 30-day window, Buyer's calculation shall be deemed final, conclusive, and binding upon all parties. If Seller timely objects and the parties cannot resolve disputed items within thirty (30) days, the dispute shall be submitted to KPMG Zurich (the 'Independent Accounting Firm') whose determination shall be final.
3.3 Payment of Deficit. If the Final Closing Working Capital is less than the Target Working Capital ($12,500,000 USD), Seller shall, within ten (10) business days following final determination, pay the amount of such deficit directly to Buyer, or Buyer may, at its sole election, instruct the Escrow Agent to release such deficit amount directly from the Indemnity Escrow Fund.

SECTION 4. REPRESENTATIONS AND WARRANTIES OF SELLER

4.1 Intellectual Property Ownership and Validity. Seller represents and warrants that, to the actual knowledge of the Chief Executive Officer of Seller without any duty of reasonable inquiry or investigation, Seller is the sole and exclusive owner of all Acquired IP. Seller does not warrant or represent that the operation of the Business does not infringe, misappropriate, or violate any valid third-party patents or patent claims issued in the United States, Japan, or the European Patent Office.
4.2 Regulatory and AI Compliance. Seller represents that its quantum and neural algorithmic models comply in all material respects with applicable Swiss Federal Data Protection Act regulations. Seller makes no representations or warranties concerning compliance with the EU Artificial Intelligence Act (Regulation EU 2024/1689), US Executive Orders on Artificial Intelligence, or export control restrictions under the US Export Administration Regulations ('EAR').
4.3 Financial Statements. The audited balance sheet and income statements of Seller dated as of December 31, 2025 present fairly in all material respects the financial condition of the Business in accordance with Swiss GAAP FER.

SECTION 5. INDEMNIFICATION, BASKETS AND AGGREGATE LIABILITY CAPS

5.1 Indemnification by Seller. Seller shall defend, indemnify, and hold harmless Buyer, its affiliates, directors, officers, and successors from and against any and all Losses suffered or incurred arising out of or resulting from: (a) any breach of any representation or warranty made by Seller; (b) any breach of any covenant or agreement by Seller; and (c) any Excluded Liabilities.
5.2 Indemnification Baskets and De Minimis Limits. Seller shall have no indemnification liability under Section 5.1(a) unless: (i) the Losses resulting from an individual claim exceed TWO HUNDRED FIFTY THOUSAND DOLLARS ($250,000 USD) (the 'De Minimis Threshold'), and any claim below such amount shall not be actionable; and (ii) the aggregate amount of all actionable Losses exceeds ONE MILLION FIVE HUNDRED THOUSAND DOLLARS ($1,500,000 USD) (the 'Basket'), in which event Seller shall be liable for all Losses from the first dollar (a 'Tipping Basket').
5.3 Liability Cap. Seller's maximum aggregate indemnification liability for breaches of General Representations shall be strictly capped at the Indemnity Escrow Amount ($15,000,000 USD); provided, however, that Fundamental Representations (Organization, Authority, and Tax Liabilities) shall remain uncapped up to the Total Purchase Price ($185,000,000 USD).
5.4 Consequential Damages Waiver. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL, OR PUNITIVE DAMAGES, OR FOR ANY LOST PROFITS OR LOSS OF BUSINESS REPUTATION ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT.

SECTION 6. RESTRICTIVE COVENANTS AND NON-COMPETITION

6.1 Global Non-Competition. For a period of five (5) consecutive years following the Closing Date, Seller, its parent entity, and each of its key C-level executive officers shall not, directly or indirectly, anywhere in North America, the European Union, the United Kingdom, Switzerland, or the Asia-Pacific region, engage in, invest in, manage, operate, consult for, or lend assistance to any enterprise, startup, or venture that develops, markets, or licenses quantum computing architectures, high-performance neural tensor processors, or generative AI accelerator hardware.
6.2 Non-Solicitation of Key Personnel. For a period of thirty-six (36) months post-Closing, Seller shall not solicit, hire, recruit, or induce any transited engineer, software architect, or researcher employed by Buyer to terminate their employment.

SECTION 7. TAX ALLOCATIONS AND REPORTING

7.1 Purchase Price Allocation. Within sixty (60) calendar days after the Closing Date, Buyer shall prepare and deliver to Seller a draft allocation of the Purchase Price among the Acquired Assets in accordance with Section 1060 of the US Internal Revenue Code of 1986. The parties agree to report consistently with such allocation on all IRS Forms 8594 and corresponding Swiss tax authority filings.
7.2 Transfer Taxes. All sales, use, transfer, stamp, documentary, or value-added taxes ('Transfer Taxes') incurred in connection with the consummation of the transactions contemplated by this Agreement shall be borne equally fifty percent (50%) by Buyer and fifty percent (50%) by Seller.

SECTION 8. GOVERNING LAW, DISPUTE RESOLUTION AND ICC ARBITRATION

8.1 Governing Law. This Agreement, and all claims or causes of action arising out of or related to this Agreement, shall be governed by, and enforced in accordance with, the substantive laws of Switzerland, without regard to conflict of laws principles. The United Nations Convention on Contracts for the International Sale of Goods (CISG) shall not apply.
8.2 Binding ICC Arbitration. Any dispute, controversy, or claim arising out of or relating to this Agreement, including the formation, interpretation, breach, or termination thereof, shall be submitted to and finally resolved by arbitration administered by the International Chamber of Commerce ('ICC') in accordance with the ICC Rules of Arbitration. The arbitral tribunal shall consist of three (3) arbitrators. The seat and legal place of arbitration shall be Geneva, Switzerland. The language of the arbitration proceedings shall be English. The arbitral award shall be final, non-appealable, and enforceable in any court of competent jurisdiction.

EXHIBIT A. SCHEDULE OF ACQUIRED PATENTS AND IP ASSETS

1. EP Patent App 2419201.4 - Quantum Annealing Neural Matrix Acceleration Engine
2. US Patent 11,849,203 B2 - Cryogenic Low-Noise Qubit Readout and Superconducting Bus Architecture
3. Proprietary Model Repository: Cerberus-QNN-V4 (175 Billion Parameter Quantum Transformer Checkpoint)
4. 512 Cryogenic Multi-Core Interconnect Interface Nodes located at Technoparkstrasse 1, 8005 Zurich, Switzerland.

EXHIBIT B. EXCLUDED LIABILITIES AND ESCROW AGREEMENT SUMMARY

1. Pre-closing tax assessments by the Zurich Cantonal Tax Administration for fiscal years 2023-2025.
2. Pending Swiss Federal Labor Tribunal employment severance claim (Case Ref: ZH-LAB-2025-9941).
3. Escrow Agreement Terms: Indemnity Escrow Fund of $15,000,000 USD held by J.P. Morgan Chase Bank, N.A., London Branch, with release of remaining undisbursed funds on the 24th monthly anniversary of Closing, subject to unresolved claims notices.